UNITED STATES BANKRUPTCY COURT
EASTERN DISTRICT OF KENTUCKY
LEXINGTON DIVISION

In re:	Case No. 00-00000
EXAMPLE HOLDINGS, LLC, Debtor.	Chapter 7
EXAMPLE TRUSTEE, in his capacity as Chapter 7 Trustee, Plaintiff,	Adv. No. 00-0000
v.	
EXAMPLE CREDITOR, INC. Defendant.	

DEFENDANT'S MOTION TO DISMISS THE COMPLAINT AND MEMORANDUM IN SUPPORT

Hearing: Thursday, November 19, 2026
Time: 10:00 a.m. (Eastern)
Place: Lexington Courtroom, 1st Floor (fictional)
Objections due: November 12, 2026 (fictional)

The Defendant moves under Federal Rule of Bankruptcy Procedure 9013 and Local Bankruptcy Rule 9013-1 for an order dismissing the Complaint for failure to state a claim, Federal Rule of Civil Procedure 12(b)(6) as made applicable by Rule 7012.[1]

MEMORANDUM IN SUPPORT

I. Introduction

The Complaint seeks to avoid a transfer made more than two years before the petition date. The transfer falls outside the reach of 11 U.S.C. § 548(a)(1), and the Complaint pleads no facts that would bring it within any other avoidance provision.

II. Background

The Debtor filed a voluntary petition under chapter 7 on a fictional date. The Plaintiff, as trustee, filed this adversary proceeding on a fictional date and pleads two counts.

[1] This footnote is fictional. It exists to check that footnotes render at the footnote size and that the space after a footnote mark is kept.

A. The Complaint

1. Count I seeks avoidance under section 548.

2. Count II seeks recovery under section 550.

III. Argument

A. The Complaint does not plead a transfer within the look-back period

A complaint must contain enough facts to state a claim that is plausible on its face. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (fictional citation, for layout only).

B. Count II depends on Count I

Recovery under section 550 requires an avoidable transfer. Without Count I, Count II has nothing to rest on.

IV. Conclusion

The Court should dismiss the Complaint.

Respectfully Submitted,

/s/ Jane Q. Example

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CERTIFICATE OF SERVICE

I certify that on the date above, I electronically filed the foregoing with the Clerk of Court using the CM/ECF system, which will send notification of the filing to all parties who have appeared, and that I served the foregoing on the Plaintiff by first-class mail (fictional).

/s/ Jane Q. Example

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